

HEADNOTE

“1. Although the Statement of defence shall include a Counterclaim for revocation, the parties shall make use of the official forms available online. In practice, this means that the Counterclaim for revocation must also be filed in the workflow provided for this purpose by the CMS. Only when this requirement has been met is the Counterclaim for revocation properly filed.

2. Where the defendant has filed a Statement of defence in due time in accordance with the requirements of Rule 25.1 RoP, the time limit for filing the Counterclaim for revocation in the dedicated workflow of the CMS may be extended retrospectively upon request (Rule 9.3 (a) RoP) and subject to the following conditions: Firstly, the defendant must have already made a first attempt to file the Counterclaim for revocation in due time in the workflow provided for this purpose before the expiry of the time limit. Secondly, the defendant must have uploaded the Counterclaim for revocation to the correct workflow without culpable delay after the expiry of the deadline.”

COURT
Local Division in Düsseldorf

PROCEEDINGS
Counterclaim for revocation

PATENT
EP 3 594 009 B1

Lithographic printing plate original plate, and method for producing lithographic printing plate

KEYWORDS

Statement of defence

Counterclaim for revocation

time period

deadline

extension of a time limit

retrospectively

CMS

workflow

Rule 25 Counterclaim for revocation**SUMMARY**

The Local Division in Düsseldorf ruled on a counterclaim for revocation. The patent at issue relates to lithographic printing plate original plate, and method for producing lithographic printing plate. According to the headnotes of the decision, a counterclaim for revocation must be filed using the official forms and submitted through the designated workflow in the case management system to be considered properly filed. The court clarified that where a defendant has timely filed a statement of defence, the deadline for filing a counterclaim for revocation in the dedicated workflow may be extended retrospectively if the defendant made a good faith attempt to file within the original deadline and thereafter uploaded the counterclaim without culpable delay.